Lecture Notes: Constitutional Law

The Evolution of the Basic Structure Doctrine

From Shankari Prasad to Kesavananda Bharati

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Part I: The Foundational Conflict – Parliament vs. the Judiciary

1 The Core Constitutional Question

The lecture traces one of the most consequential constitutional battles in Indian legal history: the struggle between **Parliament** and the **Supreme Court** over the scope and limits of the power to amend the Constitution. The central question is deceptively simple:

> **The Core Question**
>
> **Does Parliament have unlimited power to amend any part of the Constitution, including the Fundamental Rights (Part III), or are there inherent limitations on this amending power?**

This question engaged the highest constitutional court for over two decades, from **Shankari Prasad v. Union of India (1951)** to **Kesavananda Bharati v. State of Kerala (1973)**, culminating in the enunciation of the **Basic Structure Doctrine**.

2 The Political and Constitutional Context

When the Constitution was adopted, the first generation of India's rulers were the very **freedom fighters** who had drafted and enacted the Constitution. There was an implicit trust that these individuals, having sacrificed for the nation, would always act for the welfare of the people. In this climate, the idea that Parliament might abuse its amendment power to dismantle fundamental rights seemed remote.

However, as time passed and the political landscape changed, concerns began to emerge. If Parliament could amend any part of the Constitution without limitation, what safeguard existed against the total abrogation of the rights guaranteed to citizens? Could a transient parliamentary majority permanently alter the essential character of the Constitution?

3 The Two Competing Visions

Two fundamentally opposed views of constitutional sovereignty emerged:

1. **Parliamentary Supremacy (The British Model):** Parliament is the supreme law-making body. It can make or unmake any law whatsoever. No person or body has the right to override or set aside legislation. If Parliament amends the Constitution, courts must accept and enforce the amendment.

2. **Constitutional Supremacy (The American Model):** The Constitution is the supreme law of the land. All organs of the State—legislature, executive, and judiciary—derive their authority from the Constitution and are bound by it. An amendment that violates the essential character or fundamental principles of the Constitution is not a valid exercise of the amending power.

The Indian Constitution does not explicitly adopt either model in its pure form. The contest between these two visions played out in the courts over two decades.

Part II: The Early Cases – The First Stirrings of Doubt

4 Shankari Prasad v. Union of India (1951)

4.1 Facts and Issue

The Constitution (First Amendment) Act, 1951, introduced, among other things, Article 31A and 31B, which sought to protect land reform laws from challenge on the ground that they violated Fundamental Rights, particularly the right to property under Article 31. The amendment was challenged on the ground that it infringed Fundamental Rights and that Parliament lacked the power to amend Part III of the Constitution.

4.2 The Question Before the Court

The core legal question was: **Is a constitutional amendment a "law" within the meaning of Article 13(2)?** Article 13(2) provides that the State shall not make any law which takes away or abridges the Fundamental Rights conferred by Part III. If a constitutional amendment is "law" under Article 13(2), then Parliament cannot amend Fundamental Rights. If it is not "law," then the prohibition in Article 13(2) does not apply to constitutional amendments.

4.3 The Judgment

The Supreme Court, by a unanimous decision, held that:

1. The word "law" in Article 13(2) refers to **ordinary legislation** made in exercise of legislative power. It does **not include constitutional amendments**.

2. A constitutional amendment is made in exercise of **constituent power** (the power to frame and amend the Constitution), which is distinct from ordinary legislative power.

3. Therefore, Parliament can amend any part of the Constitution, including the Fundamental Rights, and such an amendment is not subject to Article 13(2).

Ratio: Parliament has unlimited power to amend the Constitution, including Part III. Fundamental Rights are not immune from constitutional amendment.

5 Sajjan Singh v. State of Rajasthan (1965)

5.1 Background

The Constitution (Seventeenth Amendment) Act, 1964, further expanded the Ninth Schedule and amended Article 31A. This was again challenged. A five-judge bench of the Supreme Court was called upon to reconsider the correctness of *Shankari Prasad*.

5.2 The Majority View

The majority (Chief Justice Gajendragadkar, Justice Wanchoo, and Justice Raghubar Dayal) **reaffirmed the decision in *Shankari Prasad***. They held that Article 368 confers the power to amend the Constitution and that this power is not subject to Article 13(2). Fundamental Rights can be amended.

5.3 The Seeds of Doubt: Separate Opinions of Justice Mudholkar and Justice Hidayatullah

Although concurring in the result, two judges—**Justice J.R. Mudholkar** and **Justice M. Hidayatullah**—wrote separate opinions that planted the **first seeds of the Basic Structure Doctrine**. While they agreed with the decision, they expressed reservations and raised profound questions about whether there were *implied limitations* on the amending power.

5.3.1 Justice Hidayatullah's Opinion

Justice Hidayatullah's reasoning centered on the **primacy and sacrosanct character of Fundamental Rights**:

1. **Fundamental Rights are Primordial and Sacrosanct:** Justice Hidayatullah emphasized that Fundamental Rights form a very basic and essential part of the Constitution. They are "primordial sacrosanct" rights.

2. **The Article 13(2) Question:** He noted that Article 13(2) does not explicitly exclude constitutional amendments from the definition of "law." If ordinary legislation cannot affect Fundamental Rights because of Article 13(2), it seems anomalous that a law derived from Article 368 (which is itself a provision of the Constitution) could abrogate those very rights.

3. **Fundamental Rights Cannot Be Amended in the Same Manner as Ordinary Provisions:** The significance and character of Fundamental Rights demand a higher threshold of protection. They are not ordinary constitutional provisions. The manner in which ordinary provisions may be amended cannot be equally applied to the abrogation of fundamental liberties.

4. **Inalienable Rights:** The idea that certain rights are **inalienable**—that they cannot be taken away even by the sovereign—was part of his reasoning. These are rights that inhere in individuals by virtue of their humanity and are constitutionally recognized, not constitutionally created.

5.3.2 Justice Mudholkar's Opinion: The Comparative Constitutional Argument

Justice Mudholkar's contribution was to introduce a **comparative constitutional perspective**. His opinion is remarkable for the breadth of its scholarship, especially given the limited resources available at the time (no internet, limited library access, no SCRs in the modern sense, no interns, typewriters requiring the retyping of entire pages for a single error).

The BHU Conference and the German Constitution:

A conference was held at Banaras Hindu University (BHU), at which a **German professor** delivered a lecture on the **German Constitution (Basic Law)**. The German Basic Law contains an **"eternity clause" (Article 79(3))**, which expressly provides that certain fundamental principles—including the federal structure, the democratic and social character of the State, and the inviolability of human dignity—**cannot be amended**. These are eternally entrenched and placed beyond the reach of even the constitution-amending power.

The Pakistan Supreme Court Judgment:

Justice Mudholkar also referred to a judgment of the **Supreme Court of Pakistan**, which had similarly held that certain fundamental features of a constitution could not be abrogated by amendment. (The reference is likely to *Fazlul Quader Chowdhury v. Muhammad Abdul Haque* (1963), where the Pakistan Supreme Court discussed limitations on the amending power.)

The United States Constitution – Article V:

Justice Mudholkar drew attention to the **United States Constitution, Article V**, which provides for the amendment process and specifies certain matters that **cannot be amended**:

Article V

1. **The Slave Trade Clause (Temporary):** The first clause of Article V provided that no amendment could be made prior to the year 1808 that would affect the first and fourth clauses of Article I, Section 9. These clauses related to the prohibition on Congress banning the importation of slaves before 1808. This was a **20-year temporary entrenchment**.

2. **Equal Suffrage in the Senate (Permanent):** The second clause of Article V provides: *"No State, without its Consent, shall be deprived of its equal Suffrage in the Senate."* This is a **permanent, unamendable** provision. Every state, regardless of its population or size, is entitled to two senators. A small state like Goa (in the Indian analogy) and a large state like Uttar Pradesh have equal representation in the Senate (two senators each). This equality cannot be taken away even by constitutional amendment unless the state itself consents.

Justice Mudholkar's Reasoning:

From these comparative examples, Justice Mudholkar reasoned as follows:

1. If the constitutions of Germany, the United States, and other nations recognize that **certain things cannot be amended**—that there is a "basic structure" or an unamendable core—then it stands to reason that the Indian Constitution, **even if not explicitly**, must also contain some essential features that are beyond the reach of the amending power.

2. A constitution is not merely a collection of provisions; it has a **soul**, an **identity**, a **character**. That identity cannot be destroyed while still claiming that the same constitution survives.

3. The absence of an explicit "eternity clause" in the Indian Constitution does not mean that Parliament's amending power is unlimited. **Implied limitations** may

and should be read into the amending power to preserve the essential character of the Constitution.

4. He invited the Court to consider whether there were **basic features** of the Constitution that could not be amended. This was the first use of the conceptual language that would later become the "Basic Structure Doctrine."

5.4 The Significance of Sajjan Singh

Although the majority in *Sajjan Singh* reaffirmed the *Shankari Prasad* position, the separate opinions of Justice Mudholkar and Justice Hidayatullah had planted a powerful intellectual seed. They had introduced into Indian constitutional discourse the following ideas:

- The concept of **implied limitations** on the amending power.
- The use of **comparative constitutional law** to interpret the Indian Constitution.
- The language of **"basic features"** and **"primordial sacrosanct" rights**.
- The notion that the **identity** of the Constitution cannot be destroyed by amendment.

These ideas would germinate and find full expression in later cases.

5.5 A Note on the Scholarship of the Era

The lecture paused to reflect on the extraordinary dedication and scholarship of judges like Justice Mudholkar. In 1964:

- There was **no internet**.
- **Supreme Court Reports (SCRs)** were not as comprehensive or accessible as they are today.
- **Law libraries** were not as well-stocked with international materials.
- Judges did not have **interns** or research assistants (the very concept of an "intern" was virtually unknown in India until the 1990s; the term gained widespread currency only after the Clinton-Lewinsky scandal brought it into global headlines).
- Judgments were typed on **manual typewriters**. If an error occurred on the 21st line of a page, the entire page had to be retyped. There was no "save" or "cut and paste."

Justice Mudholkar was not in line to become the Chief Justice of India. He had nothing personal to gain from writing an elaborate, scholarly, dissenting-in-spirit opinion. He could simply have signed the majority opinion. Yet, he undertook the pain of research and writing because he believed the Constitution and the people of India deserved it. This dedication, this commitment to the constitutional cause without personal incentive, is a model of judicial integrity and intellectual rigour.

Part III: The Turn – Golaknath v. State of Punjab (1967)

6 Background and Composition of the Bench

The question of Parliament's power to amend Fundamental Rights was revisited by an **11-judge bench** of the Supreme Court in *Golaknath v. State of Punjab (1967)*. This was the largest bench assembled up to that point, reflecting the gravity and complexity of the constitutional issue.

7 The Core Argument of the Supreme Court

The majority in *Golaknath* (6:5), led by **Chief Justice K. Subba Rao**, overruled *Shankari Prasad* and *Sajjan Singh* and held that **Parliament cannot amend Fundamental Rights**.

7.1 The Reasoning: Article 368 is Procedural, Not Substantive

The central plank of the majority's reasoning was a reinterpretation of the nature of **Article 368**:

1. **Article 368 is Merely Procedural:** The marginal heading of Article 368, at the time, read: *"Procedure for amendment of the Constitution."* The Court held that Article 368 only lays down the **procedure** for amending the Constitution. It does not itself **confer the power** to amend.

2. **The Source of the Amending Power:** If Article 368 does not confer the power to amend, where does the power come from? The Court answered: **Entry 97 of the Union List (List I of the Seventh Schedule)**, read with **Article 248**.

    - **Entry 97, Union List:** "Any other matter not enumerated in List II or List III including any tax not mentioned in either of those Lists." This is the **residuary power** of legislation—the power to legislate on subjects not assigned to the State List or the Concurrent List.
    - **Article 248:** "Residuary powers of legislation.—(1) Parliament has exclusive power to make any law with respect to any matter not enumerated in the Concurrent List or State List. (2) Such power shall include the power of making any law imposing a tax not mentioned in either of those Lists."

3. **Constitutional Amendment is an Exercise of Legislative Power:** Since the power to amend the Constitution is derived from the **Legislative Relations** chapter of the Constitution (Articles 245–255, read with the Seventh Schedule), a constitutional amendment is, in essence, an act of **legislation**. It is an exercise of **legislative power**, not a separate, sui generis "constituent power."

4. **Constitutional Amendment is "Law" under Article 13(2):** If a constitutional amendment is an exercise of legislative power, it falls within the definition of

"law" in Article 13(2). Article 13(2) prohibits the State from making any "law" that takes away or abridges Fundamental Rights. Therefore, a constitutional amendment that infringes Fundamental Rights is **void** under Article 13(2).

7.2 The Conclusion

The majority concluded that **Parliament has no power to amend Part III of the Constitution (Fundamental Rights)**. Fundamental Rights were placed beyond the reach of the amending power. This was a dramatic reversal of the position that had prevailed for 16 years since *Shankari Prasad*.

7.3 The Dissent

Five judges dissented, adhering to the view that Article 368 conferred both the power and the procedure to amend the Constitution and that constitutional amendments were not "law" under Article 13(2).

Part IV: The Legislative Response – The 24th Amendment (1971)

8 The Political Context

The *Golaknath* decision was a severe blow to the legislative agenda of the government led by Prime Minister **Indira Gandhi**. The judgment threatened the validity of numerous land reform laws and other progressive legislation that had been protected by constitutional amendments placing them in the Ninth Schedule. The government resolved to overturn *Golaknath* through a constitutional amendment.

9 The 24th Constitutional Amendment Act, 1971

The 24th Amendment was a direct and comprehensive legislative response designed to **restore the supremacy of Parliament** and to negate the reasoning of the *Golaknath* majority. The amendment made the following critical changes:

9.1 Amendment 1: Change in Marginal Heading and Addition of "Power"

The marginal heading of Article 368 was changed from:

"Procedure for amendment of the Constitution"

to:

"Power of Parliament to amend the Constitution and procedure therefor"

By adding the word **"Power"**, Parliament sought to make it explicit that Article 368 is not merely a procedural provision; it is the repository of the **substantive power** to amend the Constitution. The *Golaknath* argument that the power came from the residuary legislative entry was thus legislatively overruled. The Constitution now stated, in terms, that the power to amend is located in Article 368 itself.

9.2 Amendment 2: Introduction of "Notwithstanding" Clause – Non-Obstante

A **non-obstante clause** was added to Article 368(1): **"Notwithstanding anything in this Constitution. . . "**

The significance of a non-obstante clause is that it gives the provision **overriding effect**. It means that no matter what any other provision of the Constitution says—including Article 13—**Article 368 prevails**. It is a declaration of supremacy: "I am the boss. No other provision, including Article 13, applies to me."

9.3 Amendment 3: Presidential Assent Made Mandatory – "Shall"

The language governing the President's role in the amendment process was changed to make the President's assent **mandatory**. The amendment provided that when a Bill to amend the Constitution is passed by both Houses of Parliament and presented to the President, the President **"shall"** give assent, and upon such assent, the Constitution **"shall stand amended."**

This removed any possibility that a future President might refuse assent to a constitutional amendment, thereby frustrating the will of Parliament. The President was rendered a formal, rubber-stamp authority in the amendment process.

9.4 Amendment 4: Addition of Article 13(4)

A new clause was added to Article 13:

Article 13(4) – Added by the 24th Amendment

"Nothing in this article shall apply to any amendment of this Constitution made under article 368."

This clause explicitly states that **Article 13 does not apply to constitutional amendments**. The *Golaknath* argument that a constitutional amendment is "law" under Article 13(2) and therefore cannot infringe Fundamental Rights was **legislatively nullified**. Article 13(4) makes it clear that the prohibitions in Article 13 do not extend to amendments made under Article 368.

9.5 Amendment 5: Addition of Clause (3) to Article 368

A new clause (3) was added to Article 368, which stated in substance that **nothing in Article 13 shall apply to any amendment under Article 368**. This was essentially a repetition of the point made in Article 13(4), inserted for abundant caution and emphasis.

9.6 Summary of the 24th Amendment's Strategy

The 24th Amendment was a comprehensive legislative masterstroke designed to **systematically dismantle every pillar** of the *Golaknath* reasoning:

Golaknath Holding	**24th Amendment Response**
Article 368 is merely procedural; the power to amend comes from residuary legislative power (Entry 97, List I; Article 248).	Added "Power" to the marginal heading and the text of Article 368 to make it the source of substantive amending power.
A constitutional amendment is "law" within Article 13(2).	Added Article 13(4): "Nothing in this article shall apply to any amendment. . . "
Article 13(2) prohibits amendments that take away Fundamental Rights.	Added "Notwithstanding" clause to Article 368 and clause (3) to override Article 13.

9.7 The 42nd Amendment (1976) – A Later Exacerbation

The lecture noted, in passing, that the 42nd Constitutional Amendment (enacted during the Emergency) went even further. It added **clause (4)** (later renumbered as clause (5)) to Article 368, which declared, in substance, that **there are no limitations whatsoever** on the power of Parliament to amend the Constitution. This clause was later struck down as unconstitutional in *Minerva Mills v. Union of India* (1980) for violating the Basic Structure Doctrine. The point made was that the ruling party had attempted, through constitutional amendments, to assert that **whatever Parliament does is valid**—a claim of absolute, unchecked power.

Part V: The Landmark – Kesavananda Bharati v. State of Kerala (1973)

10 The Case and Its Significance

Kesavananda Bharati v. State of Kerala (1973) is arguably the most important constitutional case in Indian legal history. It was decided by the **largest-ever bench of the Supreme Court**: **13 judges**. The case directly confronted the validity of the 24th, 25th, and 29th Constitutional Amendments and, in doing so, was called upon to determine, once and for all, the scope of Parliament's amending power.

11 The Political Atmosphere

The atmosphere surrounding the case was intensely **political**. The Supreme Court had, in effect, become the arena for a fundamental contest between the legislature and the judiciary for constitutional supremacy. The judges were acutely aware that their decision would shape the future of Indian democracy.

12 The Composition of the Bench and the Judicial Alignments

The 13 judges can be broadly divided into **three groups** based on their positions:

12.1 Group 1: Pro-Parliament (Unlimited Amending Power) – 6 Judges

These six judges held that **Parliament has unlimited power to amend the Constitution, including Fundamental Rights**. There are no inherent or implied limitations on the amending power. Their view was:

- The 24th Amendment is valid.
- Article 368 confers plenary (full and absolute) power to amend any part of the Constitution.
- The word "amendment" includes the power to alter, modify, or even repeal any provision.
- The Constitution cannot be held hostage by a judicially created doctrine of unamendability.

Result: 6 judges in favour of unlimited parliamentary power.

12.2 Group 2: Pro-Basic Structure (Limited Amending Power) – 6 Judges

These six judges held that while Parliament has wide powers of amendment, **the amending power is not unlimited**. There are certain **essential features** or **basic elements** of the Constitution that cannot be destroyed by amendment. Their view was:

- Parliament can amend any part of the Constitution, including Fundamental Rights.
- However, Parliament cannot amend the Constitution in a manner that **destroys its identity** or **basic structure**.
- The Constitution has a soul, a character, an essential personality. That personality cannot be killed while keeping the body (the text) alive.
- The word "amendment" implies that the original Constitution continues to exist in an amended form. It does not contemplate the **replacement** or **abrogation** of the Constitution.

Variations within Group 2:

- Some judges (e.g., **Justice Shelat, Justice Hegde, Justice Grover**) spoke of **"implied limitations"** on the amending power.
- They identified the **identity** or **essential character** of the Constitution as the touchstone.
- Different judges used different terminology—some said "basic features," others said "basic structure," but the core idea was the same: the **identity cannot be destroyed**.

Result: 6 judges in favour of limitations on the amending power (the Basic Structure Doctrine).

The Deadlock: 6 judges for unlimited power + 6 judges for limited power = **deadlock**. The deciding vote was cast by the 13th judge.

12.3 Group 3: The Swing Vote – Justice H.R. Khanna (1 Judge)

Justice H.R. Khanna became the most consequential judge in this historic case. His vote broke the deadlock and created the 7:6 majority. His reasoning is of exceptional importance.

12.3.1 Justice Khanna's Initial Position: No Inherent Limitations

In the first part of his judgment, Justice Khanna appeared to align with the pro-Parliament camp. He stated:

- **Parliament has no inherent limitation** on its power to amend the Constitution.
- There is no **implied limitation** on the amending power.
- Parliament has **plenary power** to amend any part of the Constitution, as and when and as much as it wants.

This would have delighted the government, as it suggested that Justice Khanna was the seventh judge in favour of unlimited amending power.

12.3.2 Justice Khanna's Critical Proviso: The Meaning of "Amendment"

However, in the very next breath, Justice Khanna introduced a **critical qualification** that changed the entire trajectory of the case. He stated:

> **Justice H.R. Khanna's Holding**
>
> *"The word 'amendment' has its own inherent limitations.* ***Amendment does not mean replacement.*** *You cannot replace the Constitution. The original Constitution must survive."*

Justice Khanna's reasoning focused on the **linguistic and conceptual meaning** of the word "amendment":

1. He consulted dictionaries, including the **Oxford Dictionary**, to ascertain the ordinary meaning of "amendment."
2. "Amendment" means to **correct, improve, or modify** something while retaining its essential character.
3. "Amendment" does **not** mean **abrogation, repeal, or replacement**.
4. A constitution can be amended; it cannot be destroyed under the guise of amendment.
5. He posed a rhetorical question: **"Does amendment mean changing everything except words like 'is,' 'am,' and 'are'?"** The answer is manifestly no. The core, the essence, the main substance must remain.

12.3.3 The Path to the Basic Structure

Unlike the six judges in Group 2, who arrived at the Basic Structure Doctrine through the concept of the **identity** or **essential character** of the Constitution, Justice Khanna arrived at the same destination through a different route: the **inherent limitation** contained in the **word "amendment"** itself.

His reasoning can be summarized as follows:

1. Parliament has plenary power to amend any part of the Constitution.
2. There is no implied limitation on what can be amended.
3. However, the **power to amend** is not the same as the **power to replace**.
4. The word "amendment" contains within itself an inherent limitation: the original must survive.
5. Therefore, while Parliament can amend any provision, it cannot amend the Constitution in such a way as to **destroy its basic structure or essential framework**.
6. The Constitution, as amended, must remain **recognizably the same Constitution**.

12.3.4 The Significance of Justice Khanna's Vote

Justice Khanna's judgment created the **7:6 majority** for the proposition that while Parliament can amend any part of the Constitution, including Fundamental Rights, **it cannot alter or destroy the Basic Structure of the Constitution**. This is the **Basic Structure Doctrine**.

The Result:

- The 24th Amendment was upheld as valid.
- However, the power under Article 368, as amended by the 24th Amendment, is subject to the limitation that it cannot be used to destroy the Basic Structure.
- The 25th Amendment was partially upheld and partially struck down (the portion that excluded judicial review was held to violate the Basic Structure).

13 The Legacy: The Basic Structure Doctrine

The Basic Structure Doctrine, as propounded in *Kesavananda Bharati*, established the following principles:

1. **Parliament can amend any part of the Constitution**, including Fundamental Rights.
2. **Parliament cannot destroy or alter the Basic Structure** of the Constitution.
3. The **Basic Structure** is not exhaustively defined. It is an evolving concept. Over time, the Supreme Court has identified several features as part of the Basic Structure, including:
    - Supremacy of the Constitution
    - Republican and democratic form of government
    - Secular character of the Constitution
    - Separation of powers between the legislature, executive, and judiciary
    - Federal character of the Constitution
    - Judicial review
    - Rule of law
    - Dignity and freedom of the individual
    - Harmony and balance between Fundamental Rights and Directive Principles
4. The **power of judicial review** to determine whether an amendment violates the Basic Structure remains with the Supreme Court.

14 The Aftermath: Subsequent Developments

The lecture noted, in closing, the following subsequent developments:

- **The 42nd Amendment (1976):** Enacted during the Emergency, this amendment added clause (4) (later clause (5)) to Article 368, which declared that there were **no limitations** on the amending power. This was a direct attempt to overrule *Kesavananda Bharati*.
- **Minerva Mills v. Union of India (1980):** The Supreme Court struck down this clause as unconstitutional. The Court held that the power to amend the Constitution is a **limited power**, not an absolute power. The limitation is the Basic Structure. Any attempt to remove this limitation is itself a violation of the Basic Structure (specifically, judicial review and the harmony between Fundamental Rights and Directive Principles).

Part VI: Comparative and Historical References

15 The United States Constitution – Article V

15.1 The Amendment Process

Article V of the U.S. Constitution provides for a **four-way system** of amendment:

1. **Congress proposes, State Legislatures ratify:** This is the most common method. Two-thirds of both Houses of Congress propose an amendment. Three-fourths of the State legislatures (currently 38 out of 50 states) must ratify.

2. **Congress proposes, State Conventions ratify:** Congress proposes, and ratification is by conventions in three-fourths of the states. This method has been used only once (for the 21st Amendment, repealing Prohibition).

3. **State Legislatures demand a Convention, Congress proposes, States ratify:** Two-thirds of the state legislatures call for a constitutional convention. Congress then proposes amendments, which are ratified by three-fourths of the states. This method has never been used.

4. **Convention proposes, State Conventions ratify:** A convention proposes, and state conventions ratify.

15.2 Unamendable Provisions

Article V contains **two explicit limits** on the amending power:

(a) **Slave Trade (Temporary – 20 years):** No amendment could be made before 1808 affecting the clauses relating to the importation of slaves. This was a 20-year entrenchment.

(b) **Equal Suffrage in the Senate (Permanent):** *"No State, without its Consent, shall be deprived of its equal Suffrage in the Senate."* Each state has two senators. This equality of representation cannot be taken away even by constitutional amendment without the consent of the state concerned.

15.3 The Political Nature of Amendment in the U.S.

In the United States, the process of constitutional amendment is regarded as a **political question**, and the judiciary generally does not interfere in the amendment process. There is no judicially enforceable "basic structure" doctrine in the U.S. If an amendment is passed following the procedure in Article V, it is valid.

16 The German Basic Law – The Eternity Clause

The **German Basic Law (Grundgesetz)**, adopted in 1949, contains an **"eternity clause"** in **Article 79(3)**. This clause provides that amendments to the Basic Law affecting certain fundamental principles are **inadmissible (unamendable)**. These principles include:

- The division of the Federation into Länder (states) – the federal structure.
- The participation of the Länder in the legislative process.
- The principles laid down in Article 1 (protection of human dignity) and Article 20 (democratic and social federal state, sovereignty of the people, separation of powers, and the rule of law).

This was the provision that the German professor at the BHU conference had discussed, and which Justice Mudholkar cited as an example of a constitution that explicitly entrenches certain core principles against amendment.

17 The American Civil War and *Dred Scott v. Sandford*

The lecture drew a historical parallel to illustrate the consequences of judicial decisions on slavery and the constitutional framework.

17.1 Dred Scott v. Sandford (1857)

Dred Scott was an enslaved African American man who sued for his freedom on the ground that he had lived with his owner in a free state (Illinois) and a free territory (Wisconsin), and therefore, he should be free.

The **U.S. Supreme Court, by a 7:2 majority**, held:

1. **African Americans, whether enslaved or free, were not citizens** of the United States and could not sue in federal court.
2. The **Missouri Compromise** (which had prohibited slavery in certain territories) was unconstitutional because it deprived slave owners of their property without due process of law.
3. The Court famously declared: **"Once a slave, always a slave. You can never become a free citizen."**

This decision is widely regarded as one of the worst in the history of the U.S. Supreme Court. It inflamed public opinion, deepened the sectional divide between the North and the South, and was a direct catalyst for the **American Civil War**.

17.2 The American Civil War (1861–1865)

- **Abraham Lincoln**, a self-educated man from humble origins (a shoemaker by early trade), was elected President. He had lost almost every election in his life but won the presidency.
- Lincoln was committed to ending slavery. The Southern states, whose economy depended on slave labour, declared that they would **secede** (separate) from the Union and form a new country, the **Confederate States of America**.
- Lincoln took the bold decision to send the **U.S. military** to prevent secession and preserve the Union. The resulting conflict was the **American Civil War**.
- The war resulted in an estimated **800,000 casualties** (a staggering number, especially considering the much smaller population of the United States at the time—approximately 31 million in 1860).
- Lincoln was **assassinated** shortly after the war ended.

17.3 The Connection to Article 356 of the Indian Constitution

The lecture drew a connection between the American Civil War and **Article 356** of the Indian Constitution (President's Rule in States):

- The framers of the Indian Constitution, particularly **Dr. B.R. Ambedkar**, were deeply aware of the dangers of state secession and the potential for civil conflict.
- Article 356 was designed as a **constitutional safety valve**. If a state government acts in a manner that threatens the unity and integrity of India, or if the constitutional machinery in a state fails, the Centre can impose President's Rule, taking over the administration of the state without resorting to military force.
- The lecture contrasted this with the American experience: the U.S. had to fight a devastating civil war with 800,000 dead to prevent secession. India, through Article 356, created a **constitutional mechanism** to address state-level crises without bloodshed.
- The reference was also made to the **Second Amendment** to the U.S. Constitution (the right to bear arms), which was partly motivated by the states' desire to maintain militias to protect themselves against federal overreach.

18 Concluding Reflections on Judicial Scholarship and Integrity

The lecture concluded with a personal reflection on the dedication of judges like **Justice Mudholkar, Justice Hidayatullah, Justice Subba Rao, Justice Krishna Iyer**, and others. These judges:

- Worked without the modern amenities that contemporary students and professionals take for granted (internet, computers, comprehensive databases, interns).

- Typed their judgments on **manual typewriters**, where a single error meant retyping an entire page.
- Had no personal career advancement to gain (many were not in line to become Chief Justice).
- Yet, they undertook painstaking research and wrote elaborate, scholarly opinions because they believed in the **Constitution** and the **people of India**.

The lecture urged students to look beyond grades and CGPA and to draw inspiration from the lives of these judges—to cultivate **humility, hard work, punctuality, and a commitment to principles** rather than personal gain. The example of **Amitabh Bachchan**, who, despite his stature, reaches the set first, often before the sweepers, and never performs without rehearsal, was cited as an example of dedication to one's craft. The message was that true achievement lies not in transient accolades but in the lasting impact of one's work and the integrity with which one performs it.

Part VII: Assignment

19 Reading and Research Task

Students are required to:

1. **Read the opinions of Justice Hidayatullah and Justice Mudholkar in *Sajjan Singh v. State of Rajasthan*:**
    - Identify and list the **reasons given by Justice Hidayatullah** (in numbered points: 1, 2, 3, 4, 5) for expressing doubt about the unlimited amending power.
    - Identify and list the **reasons given by Justice Mudholkar** (in numbered points: 1, 2, 3, 4, 5) for his observations on basic features and implied limitations.
    - Each point should be written in **half a line** – concise and precise.
2. **Read *Kesavananda Bharati v. State of Kerala*:**
    - Identify the **13 judges** who comprised the bench.
    - Memorize their names.
    - Identify the judges who were **pro-Parliament** (unlimited amending power), the judges who were **pro-Basic Structure** (limited amending power), and the position of **Justice H.R. Khanna**.
3. **Pass on this assignment to the other section of the class.**

— End of Lecture —